

SENATE BILL 123

By Lowe

AN ACT to amend Tennessee Code Annotated, Title 2,
relative to political party affiliation.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 2-2-116, is amended by adding the following new language on the permanent registration record when a person registers to vote:

13. Statewide Political Party or Recognized Minor Party Affiliation _____

Notice: A voter choosing not to select a statewide political party or recognized minor party affiliation is deemed to be an independent and is not eligible to vote in a primary election.

SECTION 2. Tennessee Code Annotated, Title 2, Chapter 7, is amended by adding the following language as a new section:

2-7-144.

(a) Except as provided in subsection (c), a qualified voter who has not declared a political party affiliation shall declare a statewide political party or recognized minor party affiliation at the first primary election in which the person casts a vote after the effective date of this act. The county election commission shall then add that information to the voter's permanent registration record.

(b) A registered voter affiliated with a political party who chooses to declare a different statewide political party or recognized minor party affiliation prior to a primary election may only do so more than thirty (30) days prior to the election.

(c) New and existing registered voters who have not declared a political party affiliation in accordance with this section prior to the primary election in August of 2026,

must be deemed to be independent voters, and the respective county election commission shall then add that information to the voters' permanent registration record.

SECTION 3. Tennessee Code Annotated, Section 2-7-115, is amended by deleting subsection (b) and substituting instead the following:

(b) A registered voter may vote in a primary election for offices for which the voter is qualified to vote at the polling place where the voter is registered:

(1) If the voter is registered as being affiliated with that political party; or

(2) If the primary election is the first primary election the voter has participated in after the effective date of this act and the voter declares allegiance to that political party. The party affiliation declared by the voter must then be added to the voter's permanent registration record.

SECTION 4. Tennessee Code Annotated, Section 2-2-112(b), is amended by adding the following new subdivision (3) and redesignating the existing subdivision (3) as subdivision (4):

(3) Affiliate with, or change a registered voter's affiliation with, a statewide political party or recognized minor party. Except for voters affiliating with a political party at a primary election in accordance with § 2-7-144, affiliation or change in affiliation with a statewide political party or recognized minor party may only be accepted and processed more than thirty (30) days before the next primary election in the jurisdiction in which the voter resides; and

SECTION 5. This act takes effect upon becoming a law, the public welfare requiring it.